

24CV05224 Collaborative Imaging Technology LLC vs CMI Management LLC et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-03

Motion: Motions to Compel (8)

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Tentative Ruling: Collaborative Imaging Technology LLC vs CMI Management LLC et al

Case Number

24CV05224

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/03/2026 - 10:00

Nature of Proceedings

Motions to Compel (8)

Tentative Ruling

Collaborative Imaging Technology, LLC, v. CMI Management, LLC, et al.

Case No. 24CV05224

Hearing Date: August 3, 2026

HEARING: (1) Motion of Defendants to Compel Production of Electronically Stored Information (filed April 8, 2026)

(2) Motion of Collaborative Imaging Technology to Compel Further Responses to Special Interrogatories, Sets One and Two, and Form Interrogatories, Sets Two and Three (filed April 23, 2026)

(3) Motion of CMI Management, LLC, (CMIM) to Compel Further Responses to Special Interrogatories, Set One (filed April 14, 2026)

(4) Motion of Collaborative Imaging Technology to Compel Further Responses to Requests for Admission (filed April 23, 2026)

(5) Motion of Pueblo Radiology Medical Group, Inc., to Compel Further Responses and Production of Documents from Plaintiff in Response to Requests for Production, Set One (filed April 10, 2026)

(6) Motion of Pueblo Radiology Medical Group, Inc., and Pueblo Radiology Associates, Inc., to compel further responses to requests for admission, set one (filed June 18, 2026)

(7) Motion of Pueblo Radiology Associates, Inc., to compel further responses to special interrogatories, set one (filed June 18, 2026)

(8) Motion of Pueblo Radiology Medical Group, Inc., and Pueblo Radiology Associates, Inc., to compel further responses to form interrogatories, set one (filed June 18, 2026).

ATTORNEYS: For Plaintiff and Cross-Defendant Collaborative Imaging Technology: Nilay U. Vora, Jeffrey A. Atteberry, Elizabeth A. Greenman, Andrew I. Campa, The Vora Law Firm, P.C.

For Defendants and Cross-Complainants CMI Management, LLC, Pueblo Radiology Medical Group, Inc., and Pueblo Radiology Associates, Inc.: Christopher B. Queally, Imran F. Vakil, Gordon Rees Scully Mansukhani, LLP

For Cross-Defendant Collaborative Imaging, LLC: Elizabeth Fellmeth, Freeman Mathis & Gary, LLP

For Third-Party Deponent King & Spalding LLP: Jessica R. MacGregor, Long & Levit LLP

TENTATIVE RULING:

No objections having been filed thereto, the court adopts as the orders of the court: (i) the Recommendations, filed June 1, 2026, Re Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Sets One and Two, and Form Interrogatories, Sets Two and Three; (ii) the Recommendations, filed June 1, 2026, Re Defendants' Motion to Compel Plaintiff Collaborative to Search for and Produce Electronically Stored Information; and (iii) the Recommendations, filed June 1, 2026, Re CMIM's Motion to Compel CIT to Provide Further Responses to CMIM's Special Interrogatories, Set One and Request for Sanctions.

The objections of defendants to the Recommendations, filed June 1, 2026, Re CIT Motion to Compel Further Responses to Requests for Admission, Sets One and Three, are sustained in part. The court adopts as the order of the court the Recommendations, filed June 1, 2026, Re CIT Motion to Compel Further Responses to Requests for Admission, Sets One and Three with the following exception: In place of the first recommendation ("The Motion to Compel as to Request for Admission Nos. 16, 31, 32, 60, 62, 64, and 66, should be GRANTED, and these requests should be deemed admitted"), defendants shall serve further verified responses to Request for Admission Nos. 16, 31, 32, 60, 62, 64, and 66, without objection, which unequivocally and unconditionally admit or deny the requested matter, or a clearly delineated portion

thereof.

The objections of Collaborative Imaging Technology to the Recommendations, filed June 1, 2026, Re PRMG's Motion to Compel Further Responses and Production from Collaborative Image Technology, LLC in Response to Requests for Production, Set One and Request for Sanctions are overruled. The court adopts as the order of the court the Recommendations in full.

All further responses and production of documents required by these orders shall be served no later than September 2, 2026.

The motions of Pueblo Radiology Medical Group, Inc., and Pueblo Radiology Associates, Inc., to compel further responses to requests for admission, set one (filed June 18, 2026), and to compel further responses to form interrogatories, set one (filed June 18, 2026), and the motion of Pueblo Radiology Associates, Inc., to compel further responses to special interrogatories, set one (filed June 18, 2026), are continued to October 19, 2026, to be addressed following the filing and service of recommendations from the Discovery Referee.

Background:

The procedural history of this matter is as follows:

On September 19, 2024, plaintiff Collaborative Imaging Technology, LLC, (CIT) filed its original complaint in this action asserting three causes of action against defendants CMI Management, LLC, (CMIM), Pueblo Radiology Medical Group, Inc. (PRMG), and Pueblo Radiology Associates, Inc. (PRA) (collectively, defendants or Pueblo): (1) breach of contract; (2) declaratory relief; and (3) promissory fraud. The complaint was initially lodged with the court provisionally under seal, but was unsealed and filed in the public record following the court's denial of CIT's motion to seal.

On November 21, 2024, defendants filed their motion to compel arbitration of their breach of contract claims and to stay the balance of the action.

On January 8, 2025, defendants made an ex parte application to stay discovery pending disposition of their motion to compel arbitration, which was partially granted by the court on January 9 to stay discovery to February 24 or further order of the court.

On February 18, 2025, the parties filed their initial stipulation, entered as the court's order, withdrawing the pending motion to compel arbitration and setting deadlines for responsive pleadings.

On February 21, 2025, the parties filed an amended stipulation, entered as the court's order, again withdrawing the pending motion to compel arbitration and setting deadlines for responsive pleadings.

On February 27, 2025, defendants filed their answer to the complaint, generally denying the allegations of the complaint and asserting 23 affirmative defenses. Defendants concurrently filed their cross-complaint against cross-defendants CIT and Collaborative Imaging, LLC (CI), asserting six causes of action: (1) breach of contract (specific performance); (2) breach of contract (damages); (3) breach of the implied covenant of good faith and fair dealing; (4) accounting; (5) breach of fiduciary duty; and (6) tortious interference with contractual relations.

On April 17, 2025, defendants filed their first amended answer to the complaint, generally denying the allegations of the complaint and asserting 19 affirmative defenses.

On April 25, 2025, CIT filed its demurrer to the fourth, fifth, and sixth causes of action of Pueblo's cross-complaint. Also on April 25, CIT filed a motion to strike portions of Pueblo's cross-complaint, and a motion for protective order relating to the number of special interrogatories.

On April 30, 2025, CIT filed a declaration of demurring party stating that CIT intended to file a demurrer to Pueblo's answer to the complaint to support an automatic extension of time.

On May 15, 2025, Pueblo filed a motion to stay CIT's complaint on the grounds that CIT has conducted intrastate business and has failed to register to do business in California.

On May 28, 2025, Pueblo filed its second amended answer (SAA) to CIT's complaint, generally denying the allegations of the complaint and asserting 19 affirmative defenses. Also on May 28, Pueblo filed a motion to seal portions of its motion to stay the complaint.

On June 11, 2025, CIT filed its motion to compel arbitration of the cross-complaint.

On June 13, 2025, CIT filed its motion to quash deposition subpoenas to Proskauer Rose LLP and to King & Spaulding LLP.

On June 18, 2025, CI filed its joinder in CIT's motion to compel arbitration.

On July 7, 2025, Pueblo filed its combined motion to stay the deposition of, or quash the notice of deposition of, Laura Traube, M.D., and for protective order.

On July 10, 2025, CIT filed its demurrer to Pueblo's SAA. CIT concurrently filed a motion to strike portions of the SAA.

On July 18, 2025, CIT filed its motion for sanctions under Code of Civil Procedure sections 128.7 and 128.5.

On July 21, 2025, Pueblo filed an ex parte application to stay all discovery pending disposition of the motion to compel arbitration. The ex parte application was heard and granted on July 22, staying discovery pending the future hearing of all pending motions.

Also on July 21, 2025, CIT filed motions to compel further responses to interrogatories, further responses to requests for admissions, and further responses to requests for production of documents.

On July 22, 2025, Pueblo filed opposition to the demurrer to the cross-complaint, motion to strike portions of the cross-complaint, motion for protective order, and motion to compel arbitration. Also on July 22, CIT filed opposition to the motion to stay complaint, combined motion as to the deposition of Traube, and motion to quash deposition subpoenas as to Proskauer Rose and King & Spaulding.

Also on July 22, 2025, Pueblo filed a motion to seal certain documents lodged provisionally under seal in support of Pueblo's motion to quash.

On July 28, 2025, CIT filed replies to the demurrer to the cross-complaint, motion to strike, motion to compel arbitration, motion to quash subpoenas as to Proskauer Rose and King & Spaulding (with reply declarations), and motion for protective order. Also on July 28, Pueblo filed replies as to the combined motion as to the deposition of Traube, and the motion to stay complaint (with reply declarations, a request for judicial notice, and objections to evidence).

On August 4, 2025, the court denied the motion of CIT, joined by CI, to compel arbitration. The court ordered the parties to meet and confer to discuss whether the denial of the motion to compel arbitration affected any other pending motion. The court continued all other then-pending motions to September 22.

On August 29, 2025, in response to the court's orders of August 4, the parties filed a joint status report regarding their existing disputes in light of the court's denial of the motion to compel arbitration.

On September 15, 2025, CIT filed replies to the motion for sanctions, demurrer to the SAA, motion to strike portions of the SAA, motion to compel further responses to requests for production of documents, motion to compel further responses to requests for admission, and motion to compel further responses to interrogatories.

On September 16, 2025, Pueblo filed opposition to the demurrer to the SAA, and to the motion for sanctions.

On September 22, 2025, the court made a number of rulings, including: (1) CIT's

demurrer to the cross-complaint of Pueblo was sustained, with leave to amend, as to the sixth cause of action (tortious interference with contract), and was in all other respects overruled; (2) the motion of CIT to strike portions of the cross-complaint was denied in its entirety; (3) CIT's demurrer to the SAA was sustained, with leave to amend, as to the seventh (litigation privilege) and ninth (uncertainty) affirmative defenses and was in all other respects overruled; (4) the motion of CIT to strike portions of the SAA was denied in its entirety; (5) the motion of Pueblo, filed May 28, 2025, to file certain documents under seal was denied; and (6) the motion of Pueblo, filed July 22, 2025, to file under seal portions of certain documents was granted. The court also stated its intention to appoint a discovery referee. All other matters set for hearing on that calendar were continued to November 24.

On September 29, 2025, Pueblo filed its notice pursuant to the court's September 22 order electing to file in the public record those documents for which its motion to seal was denied.

On October 1, 2025, the court entered its order on the stipulation of the parties appointing R.A. Carrington as Discovery Referee extending to all matters concerning discovery in this action. The order transferred all pending discovery motions to the referee.

On October 7, 2025, Pueblo filed its third amended answer to CIT's complaint.

On October 13, 2025, CIT filed its answer to Pueblo's cross-complaint, generally denying the allegations thereof and asserting 26 affirmative defenses.

On November 3, 2025, Discovery Referee Carrington filed five reports and an attachment: (1) Recommendations on Plaintiff's Motion for Protective Order and for Sanctions (re motion filed Apr. 25); (2) Recommendations Re Plaintiff and Cross-Defendant Collaborative Image Technology, LLC's Motion to Quash Subpoenas to Proskauer Rose LLP and King & Spalding LLP, and to Pay Sanctions (re motion filed June 13); (3) Recommendation on Defendants' Combined (a) Motion to Stay Deposition/ Quash Deposition Notice of Laura Traube, M.D., and (b) Motion for a Protective Order as to the Deposition of Laura E. Traube M.D. Issued by Plaintiff Collaborative Image Technology, LLC (re motion filed July 7); (4) (i) Recommendations Re Plaintiff's Interrogatory and Requests for Admission Motions (re motions filed July 21) and (ii) Attachment to the Recommendations; and (5) Recommendations Re Plaintiff's Production Demand Motion (re motion filed July 21).

On November 13, 2025, CIT filed its objections to the Recommendations Re Plaintiff and Cross-Defendant Collaborative Image Technology, LLC's Motion to Quash Subpoenas to Proskauer Rose LLP and King & Spalding LLP, and to Pay Sanctions (re motion filed June 13). In support of these objections, CIT filed the declaration of attorney Tamara Wiesebron. Also on November 13, CI filed its joinder to CIT's objections.

On November 17, 2025, CIT filed a sur-reply in support of its motion for sanctions under Code of Civil Procedure sections 128.7 and 128.5 against defendants.

On November 24, 2025, the court made a number of rulings, including adopting and making as orders of the court, the recommendations of the Discovery Referee as set forth in: (1) Recommendations on Plaintiff's Motion for Protective Order and for Sanctions (re motion filed Apr. 25, 2025), filed November 3, 2025; (2) Recommendation on Defendants' Combined (a) Motion to Stay Deposition/ Quash Deposition Notice of Laura Traube, M.D., and (b) Motion for a Protective Order as to the Deposition of Laura E. Traube M.D. Issued by Plaintiff Collaborative Image Technology, LLC (re motion filed July 7), filed November 3, 2025; (3) Recommendations Re Plaintiff's Interrogatory and Requests for Admission Motions (re 2 motions filed July 21), filed November 3, 2025, and (4) Attachment to the Recommendations, filed November 3, 2025; and (5) Recommendations Re Plaintiff's Production Demand Motion (re motion filed July 21), filed November 3, 2025, with minor corrections and date changes. (Minute Order, filed Nov. 24, 2025, pp. 1, 5.)

The court also adopted recommendation No. 4 of the Discovery Referee's Recommendations Re Plaintiff and Cross-Defendant Collaborative Image Technology, LLC's Motion to Quash Subpoenas to Proskauer Rose LLP and King & Spalding LLP, and to Pay Sanctions (re motion filed June 13) requiring further briefing to the Discovery Referee. The court deferred resolution of all other matters pending the Discovery Referee's completed recommendations. The court also set deadlines for further briefing and continued the hearing on any objections to this hearing.

The court further continued the hearing on the motion of defendants to stay the complaint and the motion of plaintiff for sanctions re motion to stay to February 9, 2026. On February 9, the court deferred disposition of CIT's motion to quash subpoenas to Proskauer Rose LLP and King & Spalding LLP, and to pay sanctions (re motion filed June 13, 2025) pending a final recommendation from the Discovery Referee and the presentation of objections, if any, continuing the hearing on such motion, recommendation, and objections, to April 6, 2026. Also on February 9, the court denied without prejudice the motion of Pueblo to stay plaintiff's complaint. Also on February 9, the court denied CIT's motion for an award of sanctions pursuant to Code of Civil Procedure sections 128.5 and 128.7.

Further on February 9, 2026, the Discovery Referee filed the original Second Recommendations re Plaintiff and Cross-Defendant Collaborative Imaging Technology, LLC's Motion to Quash Deposition Subpoenas to Proskauer Rose LLP and King & Spalding LLP, and for Sanctions. On February 11, 2026, the Discovery Referee granted defendants' request that certain language in the original second recommendation on this motion be redacted, and requested that the February 9 recommendation be withdrawn and replaced with the amended second recommendation (Amended Second Recommendation) filed on February 13. The court will grant this request; because the original second recommendation is now improperly in the court's public file and is a discovery matter (see Cal. Rules of Court, rule 2.550(a)(3)), it will be filed under seal.

On February 19, 2026, the court entered its order on the stipulation of the parties for a protective order regarding confidential information. Also on February 19, objections were filed to the Discovery Referee's Amended Second Recommendation by non-parties Proskauer Rose LLP and King & Spalding LLP, and by CIT (an original and further objection).

On February 23, 2026, Pueblo filed an objection to the Amended Second Recommendation. Responses to the objections were filed on March 2. Also on March 2, Pueblo filed a motion to file portions of such documents under seal. A response to Pueblo's objection was filed on March 5 by King & Spalding and joined by Proskauer Rose.

On March 10, 2026, Pueblo filed its motion for an order requiring CIT to post an undertaking of \$669,791 pursuant to Code of Civil Procedure section 1030. This motion was noticed for hearing on April 6. On March 23, CIT filed its opposition; on March 27, Pueblo filed its reply.

On April 6, 2026, the court granted the motion to seal filed on March 2, 2026. The court continued the motion to require an undertaking and ruling on the objections to the Amended Recommendation to this hearing of June 15.

On April 8, 2026, Pueblo filed its motion to compel CIT to produce electronically stored information (ESI). This motion is noticed for this hearing of June 15.

On April 10, 2026, Pueblo filed its motion to compel further responses to request for production of documents. This motion is noticed for hearing on August 3.

On April 14, 2026, Pueblo filed its motion to compel further responses to special interrogatories. This motion is noticed for hearing on August 3.

On April 23, 2026, CIT filed its motion to compel further responses to requests for admission. This motion is noticed for this hearing of June 15. Also on April 23, CIT filed its motion to compel further responses to special interrogatories. This motion is also noticed for hearing on June 15.

On June 1, 2026, the Discovery Referee filed and electronically served recommendations to: (1) CIT's motion to compel further responses to the requests for admission (re motion filed April 23); (2) CIT's motion to compel further responses to special interrogatories (re motion filed April 23); (3) Pueblo's motion to compel production of ESI (re motion filed April 8); (4) CMIM's motion to compel further responses to special interrogatories (re motion filed April 14); and (5) Pueblo's motion to compel further responses to production of documents (re motion filed April 10).

On June 15, 2026, the court denied without prejudice the motion of defendants for an order requiring plaintiff to post an undertaking pursuant to Code of Civil Procedure section 1030. The court took under submission its ruling on the motion of Collaborative Imaging Technology to quash deposition subpoenas to Proskauer Rose LLP and to King & Spaulding LLP, filed on June 13, 2025. The court continued to August 3, 2026, the hearing on the motion of defendants to compel production of electronically stored information, filed on April 8, 2026, on the motion of Collaborative Imaging Technology to compel further responses to interrogatories, filed on April 23, 2026, and on the motion of Collaborative Imaging Technology to compel further responses to requests for admission, filed on April 23, 2026.

Also on June 15, 2026, Pueblo filed its motion to compel CI's response to form interrogatories and requests for admission. This motion is noticed for August 3, and has since been continued by stipulation and order to October 2, 2026, and then reset for hearing on October 19, 2026.

On June 16, 2026, CIT filed its objection to the report and recommendations of the Discovery Referee as to Pueblo's motion to compel production of documents (re motion filed April 10). Also on June 16, Pueblo filed their objection to the report and recommendations of the Discovery Referee as to CIT's motion to compel further responses to requests for admission (re motion filed April 23).

On June 18, 2026, Pueblo filed three motions, all set for hearing on August 3: (1) PRA's motion to compel further responses to special interrogatories against CIT; (2) PRMG and PRA's motion to compel further responses to requests for admission against CI; and (3) PRMG and PRA's motion to compel further responses to form interrogatories against CIT.

On June 26, 2026, PRMG filed its response to CIT's objections to the Discovery Referee's report re production of documents.

On July 15, 2026, the court entered its order after hearing confirming its tentative ruling adopting the amended second recommendation of the Discovery Referee, filed on February 13, 2026, and the first recommendation of the Discovery

Referee, filed on November 3, 2025, to the extent not modified or superseded by the amended second recommendation, as to the motion to quash deposition subpoenas to Proskauer Rose LLP and King & Spaulding LLP.

On July 15, 2026, defendants filed their renewed motion for an order requiring CIT to post an undertaking pursuant to Code of Civil Procedure section 1030. This motion is noticed for hearing on October 19, 2026.

On July 21, 2026, the court granted the ex parte application to stay the court's order after hearing, filed July 15, 2026, pending disposition of to-be-filed petitions for writ with the Court of Appeal.

Analysis:

(1) Discovery Referee Recommendations

On June 1, 2026, the Discovery Referee filed and electronically served recommendations to:

- (1) CIT's motion to compel further responses to special interrogatories (re motion filed April 23);
- (2) Pueblo's motion to compel production of ESI (re motion filed April 8);
- (3) Pueblo's motion to compel further responses to special interrogatories (re motion filed April 14);
- (4) CIT's motion to compel further responses to the requests for admission (re motion filed April 23); and
- (5) Pueblo's motion to compel further responses to production of documents (re motion filed April 10).

No objections have been filed to the Discovery Referee's recommendations as to:

- (1) CIT's motion to compel further responses to special interrogatories (re motion filed April 23);
- (2) Pueblo's motion to compel production of ESI (re motion filed April 8); and
- (3) Pueblo's motion to compel further responses to special interrogatories (re motion filed April 14).

The court therefore adopts as the orders of the court these three unopposed recommendations. This order resolves these motions.

The respective parties have filed objections to two of the recommendations of the Discovery Referee filed on June 1, 2026:

- (4) CIT's motion to compel further responses to the requests for admission (re motion filed April 23); and
- (5) Pueblo's motion to compel further responses to production of documents (re motion filed April 10).

(A) CIT's Motion to Compel Further Responses to Requests for Admission

On April 23, 2026, CIT filed its motion to compel further responses to requests for admissions, sets one and three, and for sanctions. The motion seeks further responses to requests for admission, set one (RFA1) Nos. 2, 3, 7, 16, 22, 31, and 32, and to requests for admission, set three (RFA3) Nos. 52, 53, 60, 62, 63, 64, and 66. CIT also seeks monetary sanctions in the amount of \$12,000.

These requests for admission were the subject of an earlier recommendation of the Discovery Referee, filed on November 3, 2025. The court adopted this recommendation by order dated December 16, 2025, in full except to extend the time for amended responses required by the order. The April 23, 2026, motion seeks further responses based upon the court's December 16, 2025, order.

After briefing and a hearing, the Discovery Referee recommends granting the motion in part: (1) granted as to RFA Nos. 16, 31, 32, 60, 62, 64, and 66, all of which should be deemed admitted; (2) granted as to RFA Nos. 53 and 63, for which further responses are required; (3) denied as to RFA Nos. 2, 3, 7, and 52; (4) confirm that RFA1 No. 22 had been deemed admitted by the prior order; (5) deny any request for stay; (6) deny requests for sanctions; and (7) require each party to pay half of the Discovery Referee's fees.

Pueblo argues that the Discovery Referee exceeded his authority in recommending that RFA Nos. 16, 31, 32, 60, 62, 64, and 66 be deemed admitted and further requests that the court amend its December 16, 2025, order that deemed admitted RFA No. 22. For each of these requests, the responding party should be ordered to admit or deny the request.

By way of example, RFA1 No. 16 is: "Admit that at least some of the discrepancies in payments among AFFILIATE PRACTICES were caused by factors unrelated to CI's or CIT's revenue cycle management services."

The original response to RFA1 No. 16 is: "Responding Party objects to this request on the grounds the request presents an incomplete hypothetical calling for speculation and conjecture in that the hypothetical fails to identify the 'discrepancies in payments among AFFILIATE PRACTICES' at issue, including the year, the medical services at issue, the medical payor, and other details, and Propounding Party has failed and refused to provide Responding Party with the full billing, payment, and reconciliation information and reports which predates the Transition Agreement, and Propounding Party has further locked Responding Party out of the Reconciliation module, historic reconciliation reports, and Radico and Tableau digital platforms with information necessary to respond to this request. Responding Party objects to this request on the grounds the request is overly broad, vague, ambiguous, and violates subdivision (f) of section 2033.060 of the Code of Civil Procedure in that the requests is compound, contains subparts, and requires a response as to multiple, unidentified 'discrepancies.' "

The supplemental response following the court's December 16 order is: "Insofar as some discrepancies in payments among AFFILIATE PRACTICES over the course of CMI's existence were caused by facts unrelated to CI's or CIT's revenue cycle management services, admit. Otherwise deny."

The Discovery Referee explains: "Defendants' use of the term 'insofar' in their responses renders their responses confusing, yet they are essentially admissions. The Motion to Compel should therefore be GRANTED as to Request for Admission Nos. 16, 31, and 32. The Court should deem these requests admitted. See Cal. Code Civ. Pro. § 2033.280(b)." (Recommendation, p. 9.)

Code of Civil Procedure section 2033.280 provides:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: [¶] ... [¶] (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section

2023.010).”

CIT's motion was not brought under section 2033.280, where there are no timely response, but under section 2033.290 seeking a further response. (Motion re RFA, filed Apr. 23, 2026, Notice & pp. 5-6.) “On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: [¶]

(1) An answer to a particular request is evasive or incomplete.” (Code Civ. Proc., § 2033.290, subd. (a)(1).) CIT's notice of motion seeks only “further responses” and an award of monetary sanctions. (Motion re RFA, filed Apr. 23, 2026, Notice.)

An order deeming matters admitted is effectively an evidentiary sanction for failure to obey an order compelling a further response:

“If a party then fails to obey an order compelling further response to requests for admission, the court may order that the matters involved in the requests be deemed admitted. In lieu of, or in addition to, this order, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2033.290, subd. (e).)

The motion does not seek such an evidentiary sanction and does not cite to subdivision (e) although the motion cited to every other subdivision of section 2033.290.

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Because the motion did not notice or seek the sanction of subdivision (e) of deeming matters admitted for failure to obey a prior court order, the recommendation to deem the matters admitted are not authorized by section 2033.290. Nonetheless, the Discovery Referee made a reasonable and practical effort to address the problem with the text of the response to the RFA without requiring further law and motion activity on this matter.

The fundamental problem is that the response (“Insofar as some discrepancies in payments among AFFILIATE PRACTICES over the course of CMI's existence were caused by facts unrelated to CI's or CIT's revenue cycle management services, admit. Otherwise deny.”) is ambiguous. One reading of this response is as an admission mostly tracking the words of the request (“Admit that at least some of the discrepancies in payments among AFFILIATE PRACTICES were caused by factors unrelated to CI's or CIT's revenue cycle management services”). Under this reading, the request is admitted, with the “Otherwise deny” language taking the place of the more common, “Except as expressly admitted, the request is denied.”

A different reading makes the response wholly evasive. “Insofar as” means “to the extent that.” (American Heritage Dict. (5th ed. 2016) p. 908.) Thus, the alternative reading of the response is “to the extent that” the fact is true, the fact is admitted; otherwise, the fact is denied. Such a response is circular, evasive, and fails in its purpose to put issues to rest. Under this reading, such a response unequivocally admits nothing.

“Although requests for admissions are included in the Code of Civil Procedure among discovery procedures [citation], they ‘differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof. [Citation.]’ [Citations.]” (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735–736.)

The Discovery Referee apparently read the response non-evasively, and hence as an express admission. Deeming the matters admitted, as recommended, resolves the ambiguity as seemingly intended by Pueblo, not as a matter of sanction but as a matter of interpretation. With Pueblo's objection, it is now unclear to what extent, if any, Pueblo denies the request and

intended its response to be something other than an express admission of the matter requested. In view of the ambiguity in the Discovery Referee's conclusion on this issue, the court will sustain the objection to the Discovery Referee's recommendation in part:

In place of the first recommendation ("The Motion to Compel as to Request for Admission Nos. 16, 31, 32, 60, 62, 64, and 66, should be GRANTED, and these requests should be deemed admitted."), the court will order that Pueblo provide further verified responses to these requests, without objection, which unequivocally and unconditionally admit or deny the requested matter, or a clearly delineated portion thereof. The response must leave no ambiguity as to what is admitted and what is denied, and must cover the whole scope of the requested matter. Further equivocation would appear to be grounds for the subdivision (e) sanction of deeming matters admitted.

With respect to RFA1 No. 22, the Discovery Referee stated:

"Request for Admission No. 22 states, 'Admit that YOU waived all known and unknown claims against CIT up to, through, and including the effective date of the TRANSITION AGREEMENT.' In their supplemental response, Defendants denied Request for Admission No. 22. [¶] Yet, on November 3, 2025, it was recommended that Request for Admission No. 22 be deemed admitted and the Court ordered this on December 16, 2025. Request for Admission No. 22 has therefore already been deemed admitted, and Defendants' subsequent denial of Request for Admission No. 22 is of no effect."

The court's order of December 16, 2025, adopts the prior recommendation to deem RFA1 No. 22 admitted. This matter was resolved by the court's prior order and not properly subject to the motion under consideration by the Discovery Referee. Moreover, the motion to compel under consideration by the Discovery Referee was not a motion by Pueblo to be relieved of its admission. (See Code Civ. Proc., § 2033.300.) The objection is overruled as to the Discovery Referee's recommendation for RFA1 No. 22.

In all other respects, the court will adopt the recommendations of the Discovery Referee as the order of the court as to this motion.

(B) PRMG's Motion to Compel Further Responses to Requests for Production of Documents

On April 10, 2026, PRMG filed its motion to compel further responses to production of documents, set one, (RFP) from CIT. The motion seeks further responses as to 189 requests. The Discovery Referee recommended that the motion be granted, except as to RFP No. 114, and that CIT be ordered to provide objection-free responses to all remaining requests. The Discovery Referee further recommended that to the extent CIT asserts the attorney-client privilege, CIT be required to provide a privilege log. The Discovery Referee also recommends an award of \$19,350 in monetary sanctions, but that payment of sanctions be deferred until after the case is finalized.

On June 16, 2026, CIT filed an objection to the Discovery Referee's recommendations. CIT argues that the recommendations fail to consider that CIT had already agreed to supplement its responses and produce documents in response to a majority of the requests, that the recommendations improperly compels the production of RFPs that are overbroad, irrelevant, or unduly burdensome, and ignored CIT's attempts to narrow certain of the RFPs, that the recommendations should have considered the parties' rolling production agreement in ordering the production of documents, and that the recommendations for sanctions are excessive without justification.

The discovery subject to this motion is voluminous. The separate statement, for example, consists of 444 pages; the opposition separate statement consists of 581 pages. With respect to the recommendations that further responses and production of documents should be required, the court has reviewed the motion, opposition, reply, objections, and response to objections, and all other supporting and opposing papers. The court finds persuasive the Recommendation of the Discovery Referee and will adopt the same as its order.

The Discovery Referee found monetary sanctions in the amount of \$19,350 to be reasonable and appropriate. CIT objects to this award as excessive without justification.

“Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

As discussed above, the court concludes to adopt the recommendations of the Discovery Referee granting the motion almost in its entirety in requiring further responses and production of documents. Consequently, CIT is a party who unsuccessfully opposes a motion to compel further response to a demand under section 2031.310, subdivision (h). The Discovery Referee impliedly concluded, and the court now directly concludes, that CIT did not act with substantial justification and that other circumstances do not make the imposition of sanctions unjust. Monetary sanctions are therefore properly awarded against CIT.

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. ... If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“Reasonable expenses may include attorney fees, filing fees, referee fees, and other costs incurred.” (Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc. (2020) 56 Cal.App.5th 771, 790.) “Monetary sanctions for engaging in misuse of the discovery process may only be imposed based on attorney fees and costs ‘incurred by anyone as a result of that conduct.’ [Citation.]” (Ibid.) “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse. [Citation.] The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” (Id. at p. 791.)

In support of the motion, counsel for PRMG provided a declaration detailing extensive efforts undertaken to address CIT’s failure to provide code-compliant responses to the RFPs. (Vakil decl., executed Apr. 10, 2026, ¶¶ 2-15.) Counsel identified 43.8 hours of attorney time at an hourly rate at \$375, for a total of \$16,425 incurred by CIT’s discovery noncompliance. (Vakil decl., ¶ 16.) In reply, counsel provided a supplemental declaration identifying an additional 7.8 hours, for an additional \$2,925 in fees, bringing the total fees requested to \$19,350. (Vakil decl., executed May 29, 2026, ¶ 12.) The Discovery Referee recommended awarding this total amount.

In its objection, CIT argues that, as explained in its opposition to the motion, CIT was acting reasonably, agreeing to supplement its responses in part, and generally acting with substantial justification. CIT also argues that the time and amount of attorney fees asserted to be incurred by counsel for PRMG are unreasonable. The court has determined that the CIT did not act with substantial justification and that monetary sanctions are appropriate.

The amount of monetary sanctions appear to be reasonable. By way of comparison, CIT sought an award of monetary sanctions against PRMG in opposition to the motion. In support of that request, counsel for CIT reports spending 30 hours of attorney time at an hourly rate of \$1,075, for a total request of \$32,250. (Greenman decl., executed May 22, 2026, ¶ 18.) While more time is asserted to be spent by counsel for PRMG dealing with these discovery issues, overall these respective requests consistently demonstrate that this was a very substantial discovery dispute strongly disputed by the parties, and warranting spending substantial attorney time.

After reviewing all of the evidence and arguments of the parties, the court concludes independently that the amount of monetary sanctions to be awarded in favor of PRMG and against CIT as recommended by the Discovery Referee is reasonable and appropriate.

Accordingly, the court finds persuasive and adopts, in full, the Recommendation of the Discovery Referee as to PRMG's motion to compel further responses to requests for production of documents against CIT.

(2) Remaining Matters

Also noticed for hearing for August 3, 2026, are:

(i) Motion of PRMG and PRA to compel further responses to requests for admission, set one (filed June 18, 2026);

(ii) Motion of PRA to compel further responses to special interrogatories, set one (filed June 18, 2026); and

(iii) Motion of PRMG and PRA to compel further responses to form interrogatories, set one (filed June 18, 2026).

These matters are assigned to the Discovery Referee and will be addressed following the filing and service of the Discovery Referee's recommendations.

Judges

Judge Colleen Sterne

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